

SENATE BILL 2043

By Taylor

AN ACT to amend Tennessee Code Annotated, Title 5, Chapter 1, Part 2; Title 5, Chapter 9, Part 4 and Title 8, Chapter 20, Part 1, relative to county budgeting authority for sheriffs.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 5, Chapter 1, Part 2, is amended by adding the following as a new section:

Notwithstanding a charter provision to the contrary, the county legislative body of a county with a charter form of government under this part shall not adopt a budget that reduces the budget for the sheriff below the budgeted amount for the previous fiscal year for office personnel salaries and benefits or operational expenditures necessary for the discharge of the sheriff's statutorily mandated duties unless the reduction is approved in writing by the sheriff.

SECTION 2. Tennessee Code Annotated, Section 5-9-407(b), is amended by designating the existing language as subdivision (b)(1) and adding the following as a new subdivision (b)(2):

(2) Notwithstanding subdivision (b)(1), with respect to a sheriff's office budget:

(A) The sheriff may approve or disapprove any budget amendment that would reduce personnel, operational, or capital expenditures below the level proposed by the sheriff; and

(B) The county legislative body shall amend a sheriff's budget only upon the sheriff's written consent or, if the amendment is disapproved by the sheriff pursuant to subdivision (b)(2)(A), by a two-thirds (2/3) vote of the entire county legislative body.

SECTION 3. If any provision of this act or its application to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of this act that can be given effect without the invalid provision or application, and to this end, the provisions of this act are declared to be severable.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.